

SCALIA, J., dissenting

manding provision of information that the law requires the agency to furnish—one demanding compliance with the Freedom of Information Act or the Federal Advisory Committee Act, for example—can reasonably be described as being “aggrieved” by the agency’s refusal to provide it. What the respondents complain of in this suit, however, is not the refusal to provide information, but the refusal (for an allegedly improper reason) to commence an agency enforcement action against a third person. That refusal *itself* plainly does not render respondents “aggrieved” within the meaning of the Act, for in that case there would have been no reason for the Act to differentiate between “person” in subsection (a)(1) and “party aggrieved” in subsection (a)(8). Respondents claim that each of them is elevated to the special status of a “party aggrieved” by the fact that the requested enforcement action (if it was successful) would have had the effect, among others, of placing certain information in the agency’s possession, where respondents, along with everyone else in the world, would have had access to it. It seems to me most unlikely that the failure to produce that effect—*both* a secondary consequence of what respondents immediately seek, *and* a consequence that affects respondents no more and with no greater particularity than it affects virtually the entire population—would have been meant to set apart each respondent as a “party aggrieved” (as opposed to just a rejected complainant) within the meaning of the statute.

This conclusion is strengthened by the fact that this citizen-suit provision was enacted two years after this Court’s decision in *United States v. Richardson*, 418 U. S. 166 (1974), which, as I shall discuss at greater length below, gave Congress every reason to believe that a voter’s interest in information helpful to his exercise of the franchise was *constitutionally inadequate* to confer standing. *Richardson* had said that a plaintiff’s complaint that the Government was unlawfully depriving him of information he needed to